

United States v. Alvarez - Criminal Judgment

Criminal Judgment in United States v. Alvarez. Procedural posture: Defendant filed a timely criminal notice of appeal after a within-Guidelines sentence; the government invokes an appellate waiver while defendant challenges Guidelines calculation and allocution. Record material: Defense counsel objected to the enhancement in writing but did not renew the objection after the court adopted the PSR. Issue: Scope and validity of appellate waiver. Standard of review: de novo with plea-colloquy record review. Record excerpt: Sentencing transcript and allocution. Alvarez apologized, described rehabilitation efforts, and requested a variance before the court imposed an 84-month sentence. Nature of suit: Criminal - Sentencing. Lower tribunal: U.S. District Court for the Eastern District of North Carolina.